

15th City Council
18th Regular Session
Series of 2010

Republika ng Pilipinas
LUNGSOD NG DAVAO
Tanggapan ng Sangguniang Panlungsod

PRESENT:

Vice Mayor	Sara Z. Duterte	- Presiding Officer
Councilor	Nilo G. Abellera	
Councilor	Victorio S. Advincula Sr.	
Councilor	Wilberto E. Al-ag	
Councilor	Dante L. Apostol Sr.	
Councilor	Leonardo R. Avila III	
Councilor	Conrado C. Bahuran	
Councilor	Samuel B. Bangoy	
Councilor	Karlo S. Bello	
Councilor	Louie John J. Bonguyan	
Councilor	Pilar C. Braga	
Councilor	Arnolfo Ricardo B. Cabling	
Councilor	Danilo C. Dayanghirang	
Councilor	Edgar R. Ibuyan	
Councilor	Peter T. Lavinia	
Councilor	Teresita C. Mata-Marañon	
Councilor	Bonifacio E. Militar	
Councilor	Tomas J. Monteverde IV	
Councilor	Myrna G. L'Dalodo-Ortiz	
Councilor	Susan Isabel C. Reta	
Councilor	Halila Y. Sudagar	
Councilor	Angela A. Librado-Trinidad	
Councilor	Rachel P. Zozobrado	

OFFICIAL BUSINESS:

Councilor	Ms. Elen S. Acosta
Councilor	Paolo Z. Duterte
Councilor	Diosdado Angelo A. Mahipus Sr.

ABSENT:

Councilor	Jose Louie P. Villafuerte	-On Domestic Emergency Leave
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ORDINANCE NO. 0419-10
Series of 2010

**AN ORDINANCE PROHIBITING THE NAILING,
POSTING, HANGING OF STREAMERS, POSTERS
AND ADVERTISEMENTS ON TREES IN DAVAO
CITY**

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1. - TITLE. This Ordinance shall be known as "AN ORDINANCE PROHIBITING THE NAILING, POSTING, HANGING OF STREAMERS, POSTERS AND ADVERTISEMENTS ON TREES IN DAVAO CITY";

SECTION 2 - DECLARATION OF POLICY. - Article II, Section 16 of the 1987 Constitution declares that the State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature. It is likewise the policy of the City of Davao to protect and conserve growing trees and maintain the cleanliness and beautification that this City is known for;

SECTION 3 - SCOPE AND APPLICABILITY. - The provisions of this Ordinance shall apply to all acts of nailing, posting, pasting, hanging or attaching of any and all forms of streamers, posters, banners and other advertising materials on trees and species of similar nature in the City of Davao;

SECTION 4 - DEFINITION OF TERMS.

- (a) Tree - is a perennial woody plant. It is most often defined as a woody plant that has many secondary branches supported clear of the ground on a single main stem or trunk;
- (b) Poster - is an eye-catching printed paper announcement or advertisement that is exhibited to publicize or promote a product, event or idea;
- (c) Streamer - a long narrow flag, banner or pennant and may be made of cloth or tarpaulin;
- (d) Banner - display poster designed to look like a flag, with an imprinted advertising message.
- (e) Other Advertising Materials - directs attention to a business, profession, services or entertainment rendered, or to a commodity sold or offered for public/private use;

SECTION 5 - PROHIBITED ACTS. - It shall be prohibited to nail, post, paste, hang or attach any streamer, poster, banner or any other advertising materials on trees and species of similar nature as defined in Section 4, paragraph (a) found in parks, plazas, public roads, streets and boulevards or any other public grounds in the territory and within the jurisdiction of the City of Davao;

SECTION 6 - PERSONS LIABLE. - The following persons or individuals shall be deemed liable under this Ordinance;

- a. Any one who actually and directly nails, hangs, places, attaches or posts the streamers, posters or advertising materials on trees and species of similar nature found in the parks, plazas, public roads, streets and boulevards or any other public grounds; and/or
- b. Any person, association, organization or corporation that authorized or paid for the nailing, hanging or posting of such streamers, posters or other advertising materials. Furthermore, the name of the person, group, association, etc. appearing on the streamers, posters and other advertising materials shall be a prima facie evidence that they authorized and/or paid for the nailing, hanging or posting;

SECTION 7. - FINES AND PENALTIES. - Any violation of this Ordinance shall, upon conviction, subject the individual, group, association or organization to a fine and/or penalty of:

For the first offense	Php 1,000.00 to Php 3,000.00
For the second offense	Php 3,000.00 to Php 5,000.00
For the third offense	Php 5,000.00 and imprisonment of not more than one (1) month or both at the discretion of the court;

SECTION 8. - SEPARABILITY CLAUSE. - If for any reason/s any provision of this Ordinance is rendered invalid or unconstitutional, such provisions not affected by such declaration shall remain to be in full force and effect;

SECTION 9. - REPEALING CLAUSE. - Any Ordinance, local issuances or rules inconsistent with the provisions of this Ordinance are hereby modified or repealed accordingly;

SECTION 10. EFFECTIVITY. This Ordinance shall take effect upon approval and compliance with the pertinent provisions of the Local Government Code on this regard;

ENACTED, May 18, 2010, by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:

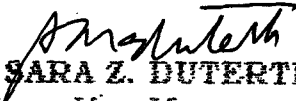
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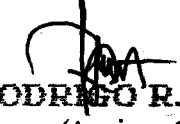
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

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6/07/10

ATTESTED:


SARA Z. DUTERTE
Vice Mayor
Presiding Officer
/bcc

APPROVED: JUL 08 2010, 2010


RODRIGO R. DUTERTE
Acting City Mayor

ATTESTED:


ERWIN P. ALPARAQUE
Acting City Administrator
AUG 10 2010